

titled to hold a lien upon) certain freehold property (or leasehold, or other property, as the case may be) therein comprised, for securing the sum of £— and interest; and that the time for payment thereof has elapsed; and that C. D., the defendant hereinafter named, is entitled to the equity of redemption of the said mortgaged premises (or, the premises subject to such lien). To the end therefore that the said A. B. may be paid the said sum of £— and interest, and the costs of this suit, and in default thereof that the equity of redemption of the said mortgaged premises may be foreclosed (or that the said mortgaged premises may be sold, or that the premises subject to such lien may be sold, as the case may be, and the produce thereof applied in or towards the payment of his said debt and costs), and for that purpose that all proper directions may be given and accounts taken.

(And for further relief; pray subpœna.)

* The names only of the parties are to be set out, not the substance or effect of the document. If there is no written security to be referred to, the property is to be described generally.

Compared with
English form.

The above follows the English form of the same number, with the addition of the explanatory note. There is no doubt however, that under the English form, or under the above form independently of the direction contained in the note, the most proper mode of pleading would have been to have stated only the names, dates, and amount secured. The date should of course be inserted, though not named in the above note.

8.
Bill to redeem.

By a person entitled to the redemption of any legal or equitable mortgage, or any lien, seeking to redeem the same.

IN CHANCERY.

To the Honourable, &c.

Humbly complaining, &c., your orator, &c., that under and virtue of an indenture (or other document) dated the ——— day of ———, and made between (parties) (and the assurances hereinafter mentioned—that is to say, an indenture dated the ——— day of ———, the will of ———, dated the ——— day of ———), the said A. B. is entitled to the equity of redemption of certain freehold property (or leasehold, or other property, as the case may be) therein comprised, which was originally mortgaged (or pledged) for securing the sum of £— and interest; and that C. D., the defendant hereinafter named, is now, by virtue of the said indenture, dated the ——— day of ——— (and of

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